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Social Movements and Deliberative Democratic Theory

JOHN MEDEARIS*

Deliberative democrats are committed both to inclusion and to barring coercion in public discourse. Their commitment to democratic inclusion should make them sympathetic to the challenges faced by social movements. An adequate sociology of contentious public discourse, however, shows that social movements must often act coercively in order to be included. For example, they must often alter the terrain of conflict, create a crisis, pressure interlocutors to argue consistently, or compel other parties to enter social arenas of contention that they have avoided. Democratic theorists who are committed to inclusion should approve of such coercion. Under the actual circumstances movements face, there is a tension between non-coercion and democratic inclusion. This tension demonstrates the need for a democratic standard and a mode of democratic social analysis beyond those that deliberative theory offers.

Social movements and their contentious speech and tactics sound recurrent, dissonant themes in the literature on deliberative democracy. Some proponents of the deliberative model – which posits a type of uncoerced public discourse as the hallmark of democratic legitimacy – recognize the role of social movements in bringing latent problems to the attention of politics.[1] Other advocates seek to prove that Martin Luther King Jr and the American civil rights movement put deliberative ideals into practice.[2] Yet critics remain unconvinced that 'deliberative democracy' can accommodate social movements, their actions and their problems. They have argued that activists, especially those in identity-based movements, often reject deliberation on principle.[3] And they have pointed to non-deliberative practices that are crucial to democracy.[4]

In fact, it would seem that a kind of gravitational force pulls the debate over deliberative democracy towards engaging the lessons of social movements. Interestingly, an equal and opposite force seems to attract social movement scholars towards the problem of political discourse. After turning away from theories that cast movements as deviant psychological responses to social 'strain',[5] scholars for many years paid little attention to the beliefs of

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[1] Seyla Benhabib, 'Toward a Deliberative Model of Democratic Legitimacy', in S. Benhabib, ed., *Democracy and Difference* (Princeton, N.J.: Princeton University Press, 1996), pp. 67–93, at p. 73; James Bohman, *Public Deliberation: Pluralism, Complexity, and Democracy* (Cambridge, Mass.: MIT Press, 1996), pp. 132–42; Jürgen Habermas, *Between Facts and Norms: Contributions to a Discourse Theory of Law and Democracy* (Cambridge, Mass.: MIT Press, 1996), pp. 357, 358.

[2] Amy Gutmann and Dennis Thompson, *Democracy and Disagreement* (Cambridge, Mass.: Harvard University Press, 1996), pp. 133; John Rawls, *Political Liberalism, with a New Introduction and the 'Reply to Habermas'* (New York: Columbia University Press, 1996), pp. lii, 247–54; John Rawls, 'The Idea of Public Reason Revisited', *The Law of Peoples, with 'The Idea of Public Reason Revisited'* (Cambridge, Mass.: Harvard University Press, 1999), pp. 131–80, at p. 154.

[3] William H. Simon, 'Three Limitations of Deliberative Democracy: Identity Politics, Bad Faith, and Indeterminacy', in S. Macedo, ed., *Deliberative Politics: Essays on Democracy and Disagreement* (New York: Oxford University Press, 1999), pp. 49–57; Iris Marion Young, 'Activist Challenges to Deliberative Democracy', *Political Theory*, 29 (2001), 670–90.

[4] Michael Walzer, 'Deliberation, and What Else?' in Macedo, ed., *Deliberative Politics*, pp. 58–69.

[5] Neil J. Smelser, *Theory of Collective Behavior* (New York: The Free Press, 1962).

social movements, concentrating instead on their organizations, and on the factors that inhibit and facilitate them.[6] But at least since the mid-1980s, discourse has become accepted as a central problem by scholars of social movements.[7]

This essay aims to bring these two literatures into even more direct engagement with each other – and not just externally. There is an internal relation between 'deliberative democracy' and social movements. According to John Dryzek, 'deliberative democracy' holds that 'the essence of democratic legitimacy should be sought ... in the ability of *all individuals subject to a collective decision* to engage in authentic deliberation about that decision.'[8] Given the emphasis on 'all individuals', deliberative democrats are committed to what Joshua Cohen terms a 'principle of deliberative inclusion'.[9] And James Bohman agrees that inclusion is a crucial deliberative value.[10] Now social movements are usually understood to be collective challenges mounted by relatively marginal groups against powerful elites and dominant ideologies. And acting, as they do, in societies characterized by significant inequalities of power, they face systematic barriers to democratic inclusion for themselves and their arguments. In addition to their weak social positions, they are almost always bearers of ideas that are uncongenial to prevalent institutions and practices. The actual experience of social movements in gaining inclusion in public discourse, then, touches concerns at the core of the deliberative paradigm.

A number of critics of the deliberative model – and even some proponents – have written very valuable contributions that emphasize unequal social relations and power. Building systematically on this work, and more especially on the rich literature on social movements, I attempt to refocus democratic thinking on the enduring social relations that constitute movements' relative powerlessness and their inferior ability to act collectively; on the resulting challenges that movements face in explaining their ideas and grievances; and on the tactics that help movements overcome these concrete disadvantages. In so doing, I

[6] For some accounts of the history of social movement theory, including relatively recent trends towards synthetic approaches, see: Doug McAdam, *Political Process and the Development of Black Insurgency, 1930–1970* (Chicago: University of Chicago Press, 1982), pp. 5–59; Ron Eyerman and Andrew Jamison, *Social Movements: A Cognitive Approach* (University Park: Pennsylvania State University Press, 1991), pp. 11–28; Jean L. Cohen and Andrew Arato, *Civil Society and Political Theory* (Cambridge, Mass.: MIT Press, 1992), pp. 493–523; Doug McAdam, John D. McCarthy and Mayer N. Zald, 'Introduction: Opportunities, Mobilizing Structures, and Framing Processes – Toward a Synthetic, Comparative Perspective on Social Movements', in D. McAdam, J. D. McCarthy and M. N. Zald, eds, *Comparative Perspectives on Social Movements: Political Opportunities, Mobilizing Structures, and Cultural Framings* (Cambridge: Cambridge University Press, 1996), pp. 1–20, at pp. 2–7; Sidney Tarrow, *Power In Movement: Social Movements and Contentious Politics* (Cambridge: Cambridge University Press, 1998), pp. 10–25.

[7] David A. Snow Jr, E. Burke Rochford, Steven K. Worden and Robert D. Benford, 'Frame Alignment Processes, Micromobilization, and Movement Participation', *American Sociological Review*, 51 (1986), 464–81; Eyerman and Jamison, *Social Movements*; Carol McClurg Mueller, 'Building Social Movement Theory', in A. D. Morris and C. M. Mueller, eds, *Frontiers in Social Movement Theory* (New Haven, Conn.: Yale University Press, 1992), pp. 3–25; McAdam, McCarthy and Zald, 'Introduction: Opportunities, Mobilizing Structures, and Framing Processes', pp. 5–7; Tarrow, *Power in Movement*, pp. 106–22.

[8] John S. Dryzek, *Deliberative Democracy and Beyond: Liberals, Critics, Contestations* (Oxford: Oxford University Press, 2000), p. v (emphasis added).

[9] Joshua Cohen, 'Procedure and Substance in Deliberative Democracy', in J. Bohman and W. Rehg, eds, *Deliberative Democracy: Essays on Reason and Politics*, (Cambridge, Mass.: MIT Press, 1997), pp. 407–37.

[10] Bohman, *Public Deliberation*, p. 100. For further discussion of this point, see Amy Gutmann and Dennis Thompson, 'Reply to the Critics', in Macedo, ed., *Deliberative Politics*, pp. 243–79; Iris Marion Young, 'Justice, Inclusion, and Deliberative Democracy', in Macedo, ed., *Deliberative Politics* (New York: Oxford University Press, 1999), pp. 151–8. Dryzek, however, understands 'inclusion' primarily to mean inclusion in the state, and casts doubts on this goal. See Dryzek, *Deliberative Democracy and Beyond*, pp. 81–114.

derive from the literature on social movements a richer sociology of conflictive public discourse, including such features as contending conceptual frames, multiple unequally-positioned interlocutors, shifting social arenas of contention and ideological production costs. The study of social movements shows that, facing these challenges, movements respond not merely by positing new ideas, as some deliberative scholars suggest, but by engaging in purposeful action that concurrently changes public discourse and the social relations in which it is enmeshed. Indeed, for social movements, intervening in public discourse and restructuring the surrounding social relations are not just intertwined activities, but two sides of the same activities. This inseparability has important implications for deliberative democracy.

Democratic theorists who value inclusive politics should view these tactics – which are necessarily strategic and non-deliberative, but still thoroughly entwined in public discourse – with great sympathy. In societies characterized by wide discrepancies in power and structural disadvantages for some, the substantive restrictions on argumentation proposed by certain deliberative democrats could actually undermine the ability of marginalized groups to address others as they must in order to have a practical impact on the way political and social matters are decided and discussed. Moreover, contrary to a basic commitment of the deliberative model, I contend that in societies where hierarchical power thoroughly pervades public discourse, marginalized groups must often act coercively in order to achieve democratic aims. The types of actions I mean to embrace are familiar: disruptive mass protests including boycotts, strikes, co-ordinated civil disobedience and non-cooperation, marches and jail packing. These were, for example, the primary tools of the US civil rights movement in major campaigns such as those in Montgomery, Alabama and Albany, Georgia. Yet it is not the list of actions but their significance that is key. Such actions both restructure discourse and coercively alter the social relations in which discourse is situated. They are symbolic and expressive, but they do not prompt other parties to act solely through persuasion. Rather, they also threaten crucial interests, disrupt customary alliances and ordinary ways of doing things, and create crises. As a result, problems are made to seem more urgent, interlocutors are pressured to argue consistently, and parties are compelled to take actions and enter arenas of contention that they have avoided. Since such tactics, which are requisite for democratic inclusion, also transgress the limits of deliberation, as its proponents now understand them, this points to a fundamental tension within the deliberative paradigm. In concluding sections of this article, I address some counter-arguments, then probe the implications of my essay for critical democratic theory, by which I mean theory that is committed to identifying and setting right what is undemocratic about existing societies. Such work, I argue, should theorize projects for transforming major institutions and social relations so that they distribute power at least evenly enough to enable broad inclusion on equal terms in political contention.

COERCION AND DELIBERATIVE DEMOCRACY

I adopt a view of coercion rooted in the current conceptualization of deliberation itself. Indeed, before offering a definition, it is worth exploring the close connection between non-coercion and deliberation. One of the deliberative theorists' basic premises is that only those decisions are legitimate that are – or could be – supported by citizens for reasons they have reflected upon and think are good ones. Coercion, simply as it is conventionally understood – as compelling through force or threats – stands in obvious contrast to such a notion of deliberation. For coercion, in this quite ordinary sense, would bypass the

attempt to gain reasoned support. This is surely why Dryzek contrasts 'coercion' with 'persuasion' and contends that deliberative democratic theory in general (not just his variety) rejects 'coercion'.[11] A principled rejection of coercion runs deep in the writings of Habermas and Rawls, who have not only endorsed deliberative democracy, but, more importantly, provided much of its intellectual apparatus. In a frequently-cited formulation, Habermas writes that 'participants in argumentation cannot avoid the presupposition that ... the structure of their communication rules out all external or internal coercion other than the force of the better argument and thereby also neutralizes all motives other than that of the cooperative search for truth.'[12] Such a co-operative search for truth, or 'action oriented to reaching understanding', is the principled heart of at least one major strand of deliberation.[13] A similar understanding of coercion is clearly also embedded in Rawls's central insistence that parties to deliberation offer each other reasons and forms of co-operation that they can accept, as he puts it, 'for the right reasons' – and not merely because of a 'balance of political and social forces' or 'sanctions'.[14] Likewise, a number of central features of Gutmann and Thompson's influential deliberative writings would seem to rule out coercion: their Rawlsian commitment to 'reciprocity', one of three putative deliberative values, which involves a sole reliance on 'reasons that are shared or could come to be shared'; their stringent demand that people who disagree 'continue to reason together to reach mutually acceptable decisions'; and their disapproval of outcomes that turn, strategically, on actors' self-interests.[15] Bohman, similarly, makes the exposing of coercion one of the three conditions of deliberative legitimacy in pluralistic societies.[16] Of course, deliberative democrats do not claim that politics can be entirely non-coercive, any more than they claim politics can be entirely deliberative. But they do claim that decisions are democratically legitimate only in so far as they are deliberative. And thus from their perspective, decisions are democratically legitimate only in so far as the processes from which they result are non-coercive.

Coercion, then, commonly refers to actions that compel by force or threats. The deliberative conception of coercion seems to highlight particularly actions that compel others to act, or to accept a decision, despite their objections, or without regard for the fact that those compelled do not share the relevant values, aims or reasons. But to clarify the significance of coercion, so understood, it is necessary to go beyond definitions, and to situate coercion within an appropriate sociological conception of power. For such coercion is really just an instantiation of power. The most compelling and comprehensive understanding of power can be found in scientific-realist and related theories that make it a feature of a 'social field' or of a 'socially structured ensemble of relations'.[17] Power,

[11] Dryzek, *Deliberative Democracy and Beyond*, p. 1.

[12] Jürgen Habermas, *Moral Consciousness and Communicative Action* (Cambridge, Mass.: MIT Press, 1990), pp. 88–9.

[13] Habermas, *Facts and Norms*, pp. 103, 147; Jürgen Habermas, *The Inclusion of the Other: Studies in Political Theory* (Cambridge, Mass.: MIT Press, 1998), p. 246.

[14] Rawls, *Political Liberalism* pp. xxxix–xl, xliv, 143.

[15] Gutmann and Thompson, *Democracy and Disagreement* pp. 1, 14, 57–8.

[16] Bohman, *Public Deliberation* pp. 100–1. Deliberative democracy's disapproval of coercion in public discourse is not lessened by the fact that Rawls and Habermas, for example, see their theories as describing the circumstances under which laws, and government coercion to enforce them, can be legitimate. See Habermas, *Facts and Norms*, p. 110; Rawls, *Political Liberalism*, p. 217; Habermas, *Inclusion of the Other*, p. 249; Rawls, 'The Idea of Public Reason Revisited', pp. 137, 165.

[17] Terence Ball, 'Two Concepts of Coercion', *Theory and Society*, 5 (1978), 97–112, 98; Thomas E. Wartenberg, 'Introduction', in T. E. Wartenberg, ed., *Rethinking Power* (Albany, N.Y.: SUNY Press, 1992),

according to this view, is best understood as 'those capacities to act possessed by social agents in virtue of the enduring relations in which they participate'.[18] Power, then, is not *necessarily* coercive – and certainly not necessarily bad. Nor does it cease to exist when it is not being exercised over someone coercively or oppressively. Throughout this article, when I refer to the challenges social movements face in attempting to enter public discourse, I view both these challenges, and movements' responses to them, in terms of power, understood as such a socially-constituted capacity to act. Social movements' challenges, though varied, are so many aspects of their inferior and other agents' superior capacities to act, which all these agents possess in virtue of unequal social relations. And social movements' tactics often amount to ways both of building and exercising their power, sometimes coercively – as well as ways of changing social relations to diminish their opponents' power, or hinder their exercise of it. Thus, simultaneously to arguing that social movements' use of coercive tactics should sometimes be accepted by democratic theorists, I am also broadening the focus from coercion, narrowly, to the broader social web of power relations in which coercion is possible and takes on significance.

Non-coercion, then, is not just a contingent position adopted by some deliberative theorists. Indeed, to accept the legitimacy of social movement coercion in democracy, deliberative scholars would have to alter their conception of deliberation so fundamentally as to relinquish much of what is distinctive about their view of democracy.

SOCIAL MOVEMENTS AND THE SOCIOLOGY OF CONTENTIOUS PUBLIC DISCOURSE

Primary Framing

The concept of frames can serve as a bridge from the consideration of discourse in the abstract to a concrete sociology of contentious public discourse. David A. Snow and his colleagues, who brought the term into social movement theory,[19] define 'frames' as 'schemata' that render 'events or occurrences meaningful', 'organize experience' and 'guide action'.[20] Thus the designation 'frame' indicates an element of an individual's or a group's thinking that serves to order the rest, taking priority over new experience or argument, and, for this reason, remaining relatively insulated from it. Concretely, frames highlight certain problems, guide causal attributions and blame, and place facts within a narrative.

Frames are crucial for thought, and do not necessarily indicate intellectual error. W. V. O. Quine's argument that knowledge is inherently a 'man-made fabric' or a 'field' that is 'underdetermined' by experience demonstrates why this is so.[21] As a result of this inherent feature of human thought, Quine argues, 'there is much latitude of choice as to what statements to reevaluate in the light of any single contradictory experience'.[22] Frames,

(F'note continued)
pp. xi–xxvi, at p. xxi; Thomas E. Wartenberg, 'Situated Social Power', in Wartenberg, ed., *Rethinking Power*, pp. 79–101.

[18] Jeffrey C. Isaac, *Power and Marxist Theory: A Realist View* (Ithaca, N.Y.: Cornell University Press, 1987), p. 80.

[19] The term is Goffman's. See Erving Goffman, *Frame Analysis: An Essay on the Organization of Experience* (Cambridge, Mass.: Harvard University Press, 1974).

[20] Snow, Rochford, Worden and Benford, 'Frame Alignment Processes, Micromobilization, and Movement Participation', p. 464.

[21] W. V. O. Quine, 'Two Dogmas of Empiricism', in A. P. Martinich, ed., *The Philosophy of Language* (Oxford: Oxford University Press, 1990), pp. 26–39, at p. 37.

[22] Quine, 'Two Dogmas of Empiricism', p. 37.

from this standpoint, fulfil an essential 'choosing' function, designating the parts of a group's conceptual world that are and are not subject to re-evaluation in light of new experience or reasoning. The crucial role frames play in thought and discourse, generally, points directly to the need for a concrete sociology of discursive conflict. For individuals do not come to possess particular frames by chance, nor are frames the purely free creations of individuals. Rather, frames are shared to varying degrees within societies and among members of social groups constituted by common interests, problems and activities.[23] Thus, in the end, frames can be adequately assessed only in light of a sociology that comprehends such social groups, their interactions and their conflicts.

The broadest discursive challenge faced by many movements is that the social problems they wish to address are often effectively invisible to others.[24] For many people – even some African Americans – the racial caste system in force in the United States through the middle of the twentieth century seemed rooted in nature, or in some other way immutable, or due to unobjectionable causes. Even issues this momentous may be relegated by predominant frames to a low level of salience, considered unworthy of sustained thought or classified as already settled. And such framing disadvantages faced by movements are, of course, closely related to their relatively weak social-structural positions. As Bohman notes, social movements confront the primary framing problem when they attempt to 'introduce new themes into public discourse', challenge the 'taken-for-granted character' of a situation, or cause 'values or beliefs' to be 'understood differently'.[25] But a key problem for social movements is that new frames cannot simply be 'introduced' into discourse. Extraordinary actions, arguments or experiences may be required to bring about a practical shift in frames in public discourse, a point to which I return repeatedly in later sections.

Secondary Framing

Even when a problem of concern to a social movement is publicly recognized, the movement faces another challenge that has not been well treated by 'deliberative democracy'. Mere recognition is not enough because social movements cannot bring their grievances before an impartial court, prepared to judge whether their goals and forms of argument are consistent with an appropriate set of values and standards. Instead, movements must mount their challenges in particular conflictive environments structured by existing social relations, usually unfavourable to their cause. In each southern city it entered, the US civil rights movement faced a battleground of frames, deployed by concrete groups, such as local African Americans of different socio-economic status, white hardliners and moderates, national media and non-violent activists – each occupying different social positions, giving them widely-differing capacities to act. What matters in such cases is not which frames are recognized, but which frames prevail.

[23] Karl Mannheim, *Ideology and Utopia: An Introduction to the Sociology of Knowledge* (San Diego: Harcourt Brace Jovanovich, 1985), p. 29.

[24] Bohman, *Public Deliberation*, pp. 197–213.

[25] Bohman, *Public Deliberation*, pp. 208, 209, 210.

Multiple, Unequally-Positioned Interlocutors

Although 'frames' arise from a ubiquitous feature of human thought, the problem of which frames predominate is sociological in nature. Bohman recognizes that in pluralistic societies, there are multiple publics to be addressed differently.[26] But not only do movements not address a single public with a single frame, they do not even address a plurality of similarly-situated publics. They are 'actively engaged in production and maintenance of meaning' for interlocutors who occupy different structural positions and with whom the movement is also strategically related in different ways – such as 'constituents, antagonists and bystanders.'[27] Social movements thus almost always face different, unreconciled discursive tasks, to be performed before structurally-differentiated interlocutors.

Media Framing

Social movements must engage in framing directed towards the news media. But more than this, the media's own framing practices disadvantage social movements (even when media are not ideologically biased against movements).[28] Most importantly, the frames within which news media present information are likely to reinforce those prevalent ones that already obscure the problems social movements set out to highlight. Mainstream news media's preference for 'official sources' also disadvantages movements, while the demand that all stories have timely 'news hooks' makes it less likely that there will be prominent reporting on persistent structural problems.[29] Media also decide what is newsworthy against a background judgement of what is 'normal'. Movements often must create a crisis, or make their actions seem unusual – or risk being ignored. All this is complicated by the fact that the news media may be one of the few means of communication with potential recruits and those for whom a movement acts. In this sense, the problems of communication with the media are simultaneously problems of communication within the movement. I return to this below.

Multiple Social Arenas of Contention

Social movements must make their cases in different arenas, where institutional structures and power relations – and relatedly, accepted frames and styles of argument – differ significantly, strongly conditioning discourse. The US civil rights movement, for example, acted locally, in particular southern cities; in state courts; in federal courts; before a network of non-violent activists; on the national stage; and before an international audience. Any such public discourse that spreads across multiple arenas is in principle indeterminate since it encompasses many of the 'conflicting values and interests involved in controversial issues and a wide and conflicting array of "logical" or "reasoned"

[26] Bohman, *Public Deliberation*, pp. 198–202.

[27] David A. Snow and Robert D. Benford, 'Master Frames and Cycles of Protest', in Morris and Mueller, eds, *Frontiers in Social Movement Theory*, pp. 133–55, p. 136.

[28] McAdam, McCarthy and Zald, 'Introduction: Opportunities, Mobilizing Structures, and Framing Processes', pp. 339–40, 346–7; Bert Klandermans, *The Social Psychology of Protest* (Oxford: Blackwell, 1997), p. 47; Tarrow, *Power in Movement*, p. 116.

[29] Robert W. McChesney, *Rich Media, Poor Democracy: Communication Politics in Dubious Times* (New York: New Press, 2000), pp. 49–50.

arguments'.[30] But such a discourse becomes determinate in specific arenas because groups and individuals in them have the capacity to make authoritative choices. Social movements have to take their challenges to favourable arenas, but they usually lack an accepted non-coercive procedure for doing so.

Ideological Production

Movements engage in 'meaning work' – 'struggle over the production of ideas and meanings'.[31] Such work, like other forms of production, requires the expenditure of resources. Movements may be able, in principle, to link their goals to widely-shared values, and there may exist ample facts that support their claims, but this does not guarantee them effective democratic inclusion. Movements must produce various media, and then organize meetings, press conferences, direct actions and other events in which interlocutors are invited or forced to think. Meanwhile, rivals are engaged in similar tasks, creating an ever-changing array of challenges to be met by even more ideological production. When it proscribes particular forms of discourse, deliberative democratic theory actually adds to these heavy demands on movements.

Relatedly, individuals outside of movements bear costs when they adopt or try out new frames. And people must have reasons to justify the costs.[32] Movements may have to create such reasons – for example, through threatening important interests or generating a sense of crisis – a point to which I return.

Concrete Political Contention

With this term, I mean to summarize and situate much of the discussion to this point. Social movements must advance their ideals and arguments in the concrete situations they actually inhabit – or not advance them at all. They face situations structured by pre-existing, competing frames, advanced competitively by unequally-positioned interlocutors; and by multiple social arenas of contention structured in various ways by a connected set of enduring social relations. The civil rights movement's attempt to tear down the oppressive racial caste system of the United States presents important examples of these problems. At the apex of its strength, the racial political economy of the United States consisted of a tightly interlocking set of economic, social and political institutions that subordinated African Americans. McAdam shows that the system of debt bondage (or share-cropping) in cotton production, along with the complicity of the federal government and the national electoral parties in the political abandonment of southern African Americans, jointly undergirded the strength of the social caste restrictions imposed on them.[33] Each problem of frames or interlocutors that the civil rights movement confronted was rooted in this overall racial political economy.

[30] For the analogy to law and courts, see David Kairys, 'Introduction', in D. Kairys, ed., *The Politics of the Law: A Progressive Critique* (New York: Basic Books, 1998), p. 4.

[31] Snow and Benford, 'Master Frames and Cycles of Protest', p. 136.

[32] Klandermans, *Social Psychology of Protest*, pp. 61–2.

[33] McAdam, *Political Process*, pp. 65–116.

Effective Public Discourse

Some scholars have argued that the 'new social movements' are oriented solely towards changing discourse and culture, not towards such goals as passing legislation. This is debatable, but even if it is true, such movements still have to 'mobilize resources and pursue various forms of collective action in the pursuit of cultural change'.[34] They must seek not merely to devise new arguments, but to make them effective parts of public discourse – ensuring that the arguments become widely recognized, and used by concrete actors in practical situations. To accomplish this, movements find they must engage in purposeful action that at once restructures discourse and, importantly, the social relations in which it is enmeshed.

WHY SUBSTANTIVE LIMITS ON PUBLIC DISCOURSE ARE NOT DESIRABLE

Some prominent versions of 'deliberative democracy', notably those of John Rawls and the scholars most influenced by him, place restrictions on the kinds of arguments parties should advance in public discourse. Citizens, Rawls argues, have a duty 'to explain to one another on ... fundamental questions how the principles and policies they advocate and vote for can be supported by the political values of public reason,' a shared set of purely political principles.[35] Proper justification according to the rules of public reason proceeds from premises 'we accept and think others could reasonably accept to conclusions we think they could also reasonably accept.'[36] For Rawls, this rules out any resort to 'comprehensive doctrines' – ones that are not limited to the 'domain' of the 'political', but which also include 'conceptions of what is of value in human life'.[37] The prohibition of comprehensive doctrines seems also to exclude metaphysical claims, claims inconsistent with 'presently accepted general beliefs and forms of reasoning found in common sense', scientific conclusions that are 'controversial', and criticism of others' comprehensive doctrines.[38] He argues, as well, that deliberators should not 'readily accuse one another of self- or group-interest, prejudice or bias ... [or] ideological blindness and delusion.'[39] Rawls's strict stance against comprehensive doctrines is softened somewhat by a 'proviso' and a 'wide view of political culture'. Introducing comprehensive doctrines may be acceptable 'provided that in due course proper political reasons' are 'presented' that are 'sufficient to support whatever the comprehensive doctrines introduced [were] said to support'.[40] Citizens may also reassure others by explaining how their reasonable comprehensive doctrines support basic constitutional and political values.[41]

Amy Gutmann and Dennis Thompson make arguments like Rawls's, though perhaps less restrictive. 'Reciprocity', they say, requires that citizens 'offer reasons that other

[34] William A. Gamson, 'The Social Psychology of Collective Action', in Morris and Mueller, eds, *Frontiers in Social Movement Theory*, pp. 53–76, at p. 59.

[35] Rawls, *Political Liberalism*, p. 217.

[36] Rawls, 'The Idea of Public Reason Revisited', p. 155. And see Rawls, *Political Liberalism*, p. 218; Cohen, 'Procedure and Substance in Deliberative Democracy', p. 417.

[37] Rawls, *Political Liberalism*, pp. 13, 247.

[38] Rawls, *Political Liberalism*, pp. 61, 127, 150, 216, 224, 247; Rawls, 'The Idea of Public Reason Revisited', p. 132.

[39] John Rawls, 'The Domain of the Political and Overlapping Consensus', *New York University Law Review*, 64 (1989), 233–55, p. 238.

[40] Rawls, *Political Liberalism*, pp. li–lii; Rawls, 'The Idea of Public Reason Revisited', p. 152.

[41] Rawls, 'The Idea of Public Reason Revisited', p. 156.

similarly motivated citizens can accept even though they recognize that they share only some of one another's values'.[42] (Appeals to fundamentalist readings of the Bible are thus out of bounds.[43]) Citizens should make only those claims that are 'consistent with reliable methods of inquiry'.[44] And they should exercise 'civic magnanimity', not accusing each other of 'strategic, political, or [merely] economic' motives.[45]

The restrictions on public discourse suggested by Rawls and others have been extensively criticized. Critics (including even some proponents of 'deliberative democracy') have argued, first, that such rules are elitist, excluding those who express themselves differently; secondly, that they do not trust enough to the endogenous mechanisms of deliberation to counteract malignant expression; and, thirdly, that they may be inconsistent with the deliberative value of equal standing.[46] Thus good arguments already exist for rejecting such limitations on public discourse. My goal in this section is to analyse the weaknesses of this vein of 'deliberative democracy' in a way that highlights some of the problems faced by social movements as they attempt to change effective public discourse within any concrete political conflict. Adhering to the forms of communication demanded by this version of 'deliberative democracy', I argue, would often prevent marginalized groups from gaining democratic inclusion.

Mobilizing by Using Religious (and Other Controversial) Frames

Michael Walzer argues aptly that mobilization is a democratic activity, alongside deliberation.[47] But mobilization is not a distinct activity that can be distinguished from discursive practices. Social movements often meet the challenge of mobilizing subaltern groups by appealing to the shared frames, concepts and ideas that help constitute them and that can spur them to action.[48] Religious groups and symbols have often played particularly important roles.[49] This matters to democratic theory because it speaks to the requirements for altering effective public discourse in the concrete conditions of political contention actually faced by movements.

The Montgomery, Alabama, bus boycott (or some action like it) was a necessary condition for initiating public discourse questioning bus segregation in the 1950s.[50] And the mobilization of Montgomery's African-American churches was, in turn, a necessary condition for the boycott. The US racial political-economy, which severely limited African

[42] Gutmann and Thompson, *Democracy and Disagreement*, pp. 14, 53.

[43] Gutmann and Thompson, *Democracy and Disagreement*, p. 56.

[44] Gutmann and Thompson, *Democracy and Disagreement*, p. 15.

[45] Gutmann and Thompson, *Democracy and Disagreement*, pp. 82–3.

[46] Iris Marion Young, 'Communication and the Other: Beyond Deliberative Democracy', in Benhabib, ed., *Democracy and Difference*, pp. 120–36; Jack Knight and James Johnson, 'What Sort of Political Equality Does Deliberative Democracy Require?' in Bohman and Rehg, eds., *Deliberative Democracy*, pp. 279–319, at p. 286; Lynn M. Sanders, 'Against Deliberation', *Political Theory*, 25 (1997), 347–76; Dryzek, *Deliberative Democracy and Beyond*, pp. 68, 168–9; Bohman, *Public Deliberation*, pp. 80–9; James Bohman, 'The Coming of Age of Deliberative Democracy', *Journal of Political Philosophy*, 6 (1998), 400–25, pp. 402, 409, 410.

[47] Walzer, 'Deliberation, and What Else?' p. 60.

[48] Aldon D. Morris, *The Origins of the Civil Rights Movement: Black Communities Organizing for Change* (New York: The Free Press, 1984); Tarrow, *Power in Movement*, pp. 22–3; Bohman, *Public Deliberation*, p. 136.

[49] Tarrow, *Power in Movement*, p. 112.

[50] I do not think that deliberative theorists will begrudge me this assumption. Rawls himself contends that abolition and civil rights movements 'were among the necessary historical conditions to establish political justice'. See Rawls, *Political Liberalism*, pp. 250–1.

Americans' capacities as effective social agents, was beginning to fall apart in the mid-twentieth century, allowing the urban churches to be among the few well-organized and financially-independent African-American institutions.[51] King later wrote that years of oppression had inculcated in southern African Americans a mentality that accepted the racial caste system.[52] His challenge, then, was to overcome quiescence by creating an injustice frame to mobilize African-American churchgoers.

But it would be unrealistic to expect that King should create such a frame out of materials irrelevant to the conceptual framework that made black parishioners a cohesive audience capable of collective action. Instead, he deployed some of the powerful religious ideas that unified them against other concepts that justified their quiescence. Appropriately, then, King's epochal speech at the Holt Street Baptist Church on the first night of the bus boycott was not just religiously-themed, but religiously thrilling. True, he spoke eloquently about the US Constitution in terms that seem consensual, even obvious, to readers half a century later. But he also tied the boycotters' cause inextricably to the moral certainty of 'Jesus of Nazareth', likened their call for justice to that of the prophet Amos, and intimated that the Christian love that undergirded their non-violence was wedded to the wrath of a God who could 'break the backbone' of American power.[53]

Supporters of Rawlsian deliberative democracy might respond in two ways. First, they might argue that King's religious appeal to Montgomery churchgoers was justifiable in Rawlsian terms, because it was not made in a public political setting, but within the background culture of 'daily life' and its 'many associations'.[54] The distinction might seem to be marginally defensible concerning this early speech, before the civil rights movement had gained a truly mass following and continual attention in the press. But as I have pointed out, news media reaching a general audience are often the only means social movements have of communicating with activists and potential sympathizers. And more broadly, the various communicative arenas and tasks for movements are far too intertwined for the proposed distinction to be sustainable. Secondly, Rawlsians might argue that King's speech could be defended according to the 'proviso' above. But the speech would not have had the desired impact on the chosen audience – and hence on effective public discourse – had it been phrased in terms of public reason. Thus it is not clear that alternative, purely-political arguments – ones that would have been truly equivalent in the relevant way – even existed.

WHY THERE SHOULD BE NO BLANKET PROSCRIPTION OF COERCION IN PUBLIC DISCOURSE

Some of the most acute critics of the deliberative model, such as Young and Ian Shapiro, have emphasized the problem of power.[55] Rawlsian versions of 'deliberative democracy'

[51] Morris, *Origins of the Civil Rights Movement*, pp. 4–12.

[52] Martin Luther King Jr, *A Testament of Hope: The Essential Writings and Speeches of Martin Luther King, Jr.* (New York: HarperCollins, 1986), p. 6.

[53] Taylor Branch, *Parting the Waters: America in the King Years, 1954–63* (New York: Simon & Schuster, 1988), pp. 140–1. In light of this language, I think Rawls errs in suggesting that King made religious arguments 'in general terms'. See Rawls, *Political Liberalism*, p. 250, n. 39. For an analogy to the Solidarity movement, see Tarrow, *Power in Movement*, p. 120.

[54] Rawls, *Political Liberalism*, p. 14; Rawls, 'The Idea of Public Reason Revisited', p. 134.

[55] Ian Shapiro, 'Enough of Deliberation: Politics is about Interests and Power', in Macedo, ed., *Deliberative Politics*, pp. 28–38, at p. 29; Young, 'Activist Challenges to Deliberative Democracy', p. 671.

seem furthest from recognizing the problems posed by unequal social relations of power. By insisting that parties to deliberation not depart from public reason, they also propose to rigidify some of the structural disadvantages that marginalized groups confront. Given his intellectual descent, one cannot doubt that Habermas knows that discourse is embedded in social worlds constituted by power relations. Yet in his deliberative-democratic writings, he presents a quasi-sociological account of public discourse and decision making in liberal democracies that is oddly silent about such a structural disadvantage.[56] In these passages, he is dismissive of those who would worry about how various social spheres are 'structured and steered'. And yet he retains coercion-free discourse as a governing ideal for conduct. Bohman's discussion of the role of power and coercion in deliberation is perhaps the most extensive in the 'deliberative democracy' literature. In passages reminiscent of Pierre Bourdieu's discussion of 'habitus', he reviews a variety of cultural cues and practices that inhibit the free exchange of reasons and questions, especially in face-to-face communication.[57] With Dryzek, he argues that power is often expressed 'in the way in which problems are defined' or 'framed'.[58] Perhaps most encouragingly, Bohman points to social movements as one way to overcome differential capacities in deliberation.[59] But he does not address the main features of concrete political contention, as social movements face and respond to them. And his discussion makes it clear that he is less interested in power and the enduring social relations that produce it than in identifying and criticizing its coercive exercise in public discourse.

Deliberative theorists are right to think that their ability to account for the American civil rights movement constitutes an important test of their ideas. Yet their philosophical commitments seem to blind them to the calculation, strategy and disruptive mass protest that went into weakening the discourse and institutions of racism. Gutmann and Thompson present a de-radicalized Martin Luther King Jr, focusing on his magnanimous challenge to Americans to 'live up to their professed principles'.[60] This King was a leader by virtue of his 'deliberative capacities' – the 'weapon' of the marginalized, because deliberation gives 'an advantage over the powerful'.[61] Dryzek conceives of King as effecting public policy chiefly through 'the power of rhetoric'.[62] Rawls portrays the civil rights and abolition movements as if they advanced religiously-rooted arguments 'for the sake of the ideal of public reason itself'.[63] In Habermas's strikingly disembodied account, movements transmit problems to the political 'core' by means of 'controversial presentation in the media' or unspecified 'sensational actions' – a role they play because of their 'greater sensitivity' to 'new problems'.[64] Bohman justly argues that by organizing, social

[56] Habermas, *Facts and Norms*, pp. 302, 307, 308, 314, 328, 354–8, 367, 375, 379–82.

[57] Bohman, *Public Deliberation*, pp. 114–16; Pierre Bourdieu, *Outline of a Theory of Practice* (Cambridge: Cambridge University Press, 1977), pp. 72–87.

[58] Bohman, *Public Deliberation*, pp. 117, 197–213; Dryzek, *Deliberative Democracy and Beyond*, p. 18.

[59] Bohman, *Public Deliberation*, pp. 132–142, 202.

[60] Gutmann and Thompson, 'Reply to the Critics', p. 254.

[61] Gutmann and Thompson, *Democracy and Disagreement*, p. 133.

[62] Dryzek, *Deliberative Democracy and Beyond*, pp. 51, 101.

[63] Rawls, *Political Liberalism*, pp. 251, li–liii, 249–51. For a discussion of Rawls's related 'proviso', see above.

[64] Habermas, *Facts and Norms*, pp. 381, 485. Perhaps the weakness of this view can be made clearer simply by substituting concrete historical terms for abstract labels. What would we make of it if someone was to assert that southern African Americans spearheaded the civil rights movement because of their 'greater sensitivity' in 'detecting and identifying' the problems of lynching and segregation?

movements pool resources to overcome the power differentials they face in deliberation. But he is vague about what such pooling involves, and how movements use this power.[65]

Young and Shapiro have portrayed social movements more completely, pointing to some of the tactics that overcome power differentials in public discourse and political contention. Young, for example, mentions: 'demonstration and direct action', 'street marches, boycotts', 'sit-ins', 'picketing, leafleting, guerilla theater', disrupting meetings and blocking building entrances, as well as 'pictures, song, poetic imagery, and expressions of mockery and longing performed in rowdy and even playful ways'.[66] Young's ideal-typical activist considers such tactics 'most appropriate for getting citizens to think seriously about what until then they may have found normal and acceptable'.[67]

This more complete list of movement tactics forces us to confront crucial questions: why are they chosen, why do they work, and what does this tell us about democracy, discourse, social relations and power? Why do social movements not simply make their arguments as compellingly as possible, relying on fair-minded people to be persuaded? By contrast, if the issues a social movement wishes to bring into public discourse are already unfavourably framed, why should a demonstration or sit-in be useful? I argue below that these tactics are often coercive exercises that concurrently intervene in public discourse and alter the power relations and the social terrain in which such discourse is situated.

Seizing Attention

A number of deliberative theorists and their critics point out that movements design their tactics to get attention. But just calling attention to oneself in a social world that already makes a movement relatively weak and its ideas unpopular can rarely be a winning approach. Nor is it clear that marches and the like get the degree of attention that is implied by this explanation for them. Over two centuries, movement tactics have become 'modular' and 'institutionalized' – widely copied in a variety of different circumstances by different groups, and effectively tamed by understandings between challengers and authorities.[68] Thus news media have become sceptical that such tactics are themselves newsworthy. In addition, many movement actions that news media do report upon do not necessarily get favourable coverage – tactics such as civil disobedience or attacks on property.[69] So it seems unlikely that 'seizing attention', *per se*, adequately describes what these tactics do to insert movements into contentious public discourse. Still, it is worth noting that even when it is a simple matter of seizing attention, the necessary actions are often coercive. Picketing and marching may exert power over others, by constraining their options, or forcing them to go about their daily business differently than they would ordinarily.[70] The

[65] Bohman, *Public Deliberation*, pp. 136–8, 224, 225.

[66] Young, 'Activist Challenges to Deliberative Democracy', pp. 670, 673, 687.

[67] Young, 'Activist Challenges to Deliberative Democracy', p. 675.

[68] Tarrow, *Power in Movement*, pp. 29–42, 99–101.

[69] My point is only that such tactics do not *necessarily* get favourable coverage. Of course, in the early 1960s, images of calm and well-groomed students being assaulted while waiting for service at southern US lunch counters made for excellent media coverage. And British environmentalists have sometimes had similar successes even with less sartorially-conformist approaches. See Matthew Paterson, 'Swampy Fever: Media Constructions and Direct Action Politics', in B. Seel, M. Paterson and B. Doherty, eds, *Direct Action in British Environmentalism* (London and New York: Routledge, 2000).

[70] Tarrow, *Power in Movement*, p. 96.

same is certainly true of acts of civil disobedience, such as building blockades, sit-ins or mass jailings. Democratic theorists should face this coercion squarely.

Capturing Interlocutors and Shifting Arenas of Contention

The strategy of the civil rights movement – both in general, and in most individual campaigns – was to force the federal government to enter as interlocutor into conflicts that otherwise pitted local authorities in the American south against rights groups.[71] For what I have termed 'the racial political economy of the US south' had been virtually invulnerable to change as long as the federal government abandoned African Americans to southern social and political institutions – the situation prevailing since the bargain ending Reconstruction.[72] Similarly, the American labour movement in the 1930s sought to use waves of strikes to force intervention by the federal government (and sometimes sympathetic state governments) into the widening conflict between organized workers and capitalist managers.[73] These goals and tactics responded to the problems of multiple unequally-positioned interlocutors and multiple social arenas of contention, as well as the need to change effective public discourse.

The civil rights and labour movements did not merely attract the attention of the Kennedy and Roosevelt administrations, which were, after all, aware of the relevant issues. Rather, the movements created such massive disruptions that the federal government (and sometimes a sympathetic state government) was forced to enter decisively into the contentious discourse.[74] Civil rights protestors took over the streets of southern cities and made them the focus of intense international press coverage. The labour movement paralysed crucial plants and industrial sectors. In response, Kennedy was forced to rein in hardline southern politicians and to send high-level officials as negotiators. Roosevelt was similarly pushed to curb businesses' reactions to strikes and ultimately to enact labour-rights legislation. The coercion, then, was twofold and by no means incidental to the movements' purposes. The federal government was coerced, not merely persuaded, into entering the struggles. And once involved, the federal government's role was itself coercive: inserting itself in previously-localized conflicts, thus forcibly altering, respectively, the political economies of race and labour.

This realization cannot be evaded by saying that these were merely goal-oriented movement actions, distinct from attempts to be included in discourse. For the discursive significance of drawing the federal government into these conflicts was crucial. In each

[71] McAdam, *Political Process*, p. 174.

[72] McAdam, *Political Process*, pp. 65–116.

[73] Irving Bernstein, *Turbulent Years: A History of the American Worker, 1933–1941* (Boston, Mass.: Houghton Mifflin, 1970), pp. 35, 75, 170, 217–29, 229–50, 530–51; Michael Goldfield, 'Worker Insurgency, Radical Organization, and New Deal Labor Legislation', *American Political Science Review*, 83 (1989), 1259–82.

[74] 'Disruption is the archetypal expression of challenging groups,' writes Tarrow (see Tarrow, *Power in Movement*, p. 96). And see Doug McAdam, 'The Framing Function of Movement Tactics: Strategic Dramaturgy in the American Civil Rights Movement', in McAdam, McCarthy and Zald, eds, *Comparative Perspectives on Social Movements: Political Opportunities, Mobilizing Structures, and Cultural Framings*, pp. 338–55, at p. 341; Tarrow, *Power in Movement*, pp. 5, 96–8. Many scholars cite Frances Fox Piven and Richard Cloward for an early formulation of this insight, although the functionalist underpinnings and anti-organizational conclusions they draw from it are not universally accepted. See Frances Fox Piven and Richard Cloward, *Poor People's Movements: Why They Succeed, How They Fail* (New York: Vintage, 1979), pp. 10–11. Dryzek's apparent recognition of the importance of disruption or destablization seems inconsistent with comments elsewhere, and with his disapproval of coercion generally. See Dryzek, *Deliberative Democracy and Beyond*, pp. 96, 101.

case, in the short term, the federal government entered as the effective bearer of particular frames that otherwise had no standing in the relevant arena of contention and public discourse. And in the longer term, the US Civil Rights Act of 1964 and the Wagner Act of 1935 dramatically altered *effective* public discourse, by creating new forums and opportunities for discussion of important issues.[75] These particular shifts in frames and *dramatis personae* may also be conceived as shifts in the arenas of contention, from purely local ones, pitting African Americans against segregationist southern governments (or workers against employers) to national ones.

Provoking Crises as a Response to High Discursive Costs

As we have seen, social movements operate in an inhospitably-structured social world, in which the problems they wish to address are already framed to their disadvantage, and in which individuals incur costs in reconsidering those frames. If this were not so, then 'getting attention' might suffice to move an issue into effective public discourse. But as it is, most people are likely to continue to process information and ideas that are brought to their attention much as they have done in the past – unless they have a strong incentive to do otherwise. A sense of crisis can provide such an incentive.

At least some northern whites were sympathetic to the goals of the civil rights movement, but did not consider them urgent. Although they themselves were insulated from the effects of racial oppression, their indifference helped maintain the US racial political economy. McAdam points out, however, that the Birmingham and Selma campaigns of the civil rights movement caused dramatic increases in the percentage of Americans who ranked civil rights as the most important problem confronting the United States.[76] Movement actions created clear 'disruptions of public order' involving the 'potential for violence' by police; they activated a 'near phobic [white] fear of black anger'; and made the media into purveyors of 'compelling and resonant dramas' with obvious villains, such as Birmingham's 'Bull' Connor.[77] The resulting sense of crisis effectively re-framed the issue of civil rights for many Americans as a matter that demanded immediate attention. This, in turn, effectively drew northern whites – or their political representatives – into the civil rights struggle.

Threatening Discursive Capital

A key in each of the above cases is that the movement anticipated that the US federal government would intervene on its side. And herein lies a different kind of coercion, taking advantage of the fact that participants in discourse must draw on and protect stores of discursive authority and credibility. We might regard these as forms of cultural or social capital.[78] Like other such forms of capital, discursive authority and credibility are really features of social relations, in virtue of which particular agents have capacities for action. Such capital can be threatened, and must be protected.

The weight of international public opinion by the early 1960s may have been against

[75] On this point, see Dryzek, *Deliberative Democracy and Beyond*, p. 79.

[76] McAdam, 'The Framing Function of Movement Tactics'.

[77] McAdam, 'The Framing Function of Movement Tactics', pp. 346–9.

[78] Bourdieu, *Outline*, pp. 171–83; Pierre Bourdieu, 'The Forms of Capital', in J. G. Richardson, ed., *Handbook of Theory and Research for the Sociology of Education* (New York: Greenwood Press, 1986), pp. 241–58.

American segregation. But the Kennedy administration wished to avoid substantial intervention in civil rights campaigns because it relied on the electoral support of southern whites. Thus, in its cautious public statements, the administration balanced its principled, pro-civil-rights language with procedural insistence (much appreciated by segregationists) that these were purely local matters. Kennedy and his advisers knew, however, that if they were forced to intervene, they would have to put the federal government's power behind civil rights, simply in order to avoid seeming hypocritical, and to protect the administration's discursive credibility as a promoter of democracy and freedom.[79] Jon Elster rightly argues that the threat of seeming hypocritical has a 'civilizing force'.[80] One might say, the fear of losing discursive capital provides an incentive to avoid hypocrisy. But in any case, the 'civilizing force' is not self-actuating. As earlier examples demonstrate, the civil rights movement created coercive situations in which the federal government's discursive capital was at risk.

Exploiting Discursive Capital, Destroying Discursive Capital

One might think that in an ideal world, there would be no inequalities in discursive capital. But as long as we are talking about discursive capital, we are talking about concrete social relations. And if movements are to influence effective public discourse within the social relations they inhabit, they must respond to such capital where it exists, both deploying it and diminishing the supply of it held by more powerful opponents. Either one may constitute a coercive exercise of power. In the civil rights movement, compelling positive federal intervention had the further effect of co-opting the federal government's discursive authority for the protestors' side. It thus helped legitimize the movement in the eyes of many northern white Americans, while making the battle seem more winnable to African Americans in the south.[81] More coercively, social movements often seek through their action to diminish the discursive authority of their most entrenched opponents. Gandhi's 1930 salt march did not topple the British raj, but it did spur millions of Indians to disobey colonial rule, undermining British legitimacy and authority, while permanently altering public discourse on India's future.[82] The same thing could be said of the mass demonstrations in Eastern Europe in 1989.[83]

The Meaning of Democratic Inclusion

Throughout this article, the meaning and implications of democratic inclusion have unfolded naturally. At the outset, democratic inclusion was allowed simply to signify inclusion on equal terms in public discourse. But public discourse itself is inseparably entwined with enduring social relations, many of which undermine democratic inclusion. (The primary example of such social relations in this article has been the racial political economy of the United States.) So movements seeking discursive inclusion must

[79] And see Simon, 'Three Limitations of Deliberative Democracy', p. 52.

[80] Jon Elster, 'Introduction', in J. Elster, ed., *Deliberative Democracy* (Cambridge: Cambridge University Press, 1998), pp. 1–18, at p. 12.

[81] McAdam, *Political Process*, pp. 83–6, 108–9, 163–6, 169–172, 180.

[82] Gandhi himself was under no illusions that he avoided coercion. See Gene Sharp, *Gandhi as a Political Strategist, with Essays on Ethics and Politics* (Boston, Mass.: Porter Sargent, 1979), pp. 27–9, 38.

[83] Anthony Oberschall, 'Opportunities and Framing in the Eastern European Revolts of 1989', in McAdam, McCarthy and Zald, eds, *Comparative Perspectives on Social Movements*, pp. 93–121, at pp. 98–9.

concurrently seek to transform the social, economic and political institutions that most affect them, enhancing their power and diminishing that of others. They often do this by engaging in coercive tactics. Although democratic inclusion may justifiably be viewed, in part, as inclusion in public discourse, a more comprehensive understanding must unfold, tactically and sociologically, so as to embrace inclusion, on equal terms, in *concrete political contention.*

Democratic Legitimacy

Deliberative democrats are right in so far as they assert that coercion can be a tool of exclusion from public discourse. But as the examples in this article show, it can also be a tool – a necessary one – for achieving democratic inclusion. What is needed to resolve this apparent paradox is a perspective on democratic legitimacy that can shed light on the significance of coercion and non-coercion. In the final two sections, I point to a project that can provide such a perspective: the democratic project of creating a society in which the major institutions and social relations distribute power evenly enough to enable broad inclusion on equal terms in political contention. This project is broader and more demanding than that of deliberative democracy. For what is at stake is *the structure of major institutions and social relations* (not just deliberative forums), their distribution of *power* (not just deliberative chances and capacities), and broad inclusion on equal terms in *political contention* (not just in deliberation).[84]

ANSWERS TO SOME OBJECTIONS

Is it dangerous not to condemn all coercion in public discourse? To proponents of deliberative democracy, it may appear that my argument effaces the sharpest and most significant distinction between legitimate democratic politics and unprincipled political conflict. I do not believe this is the case. The fact that non-coercive deliberation fails as a universally-applicable criterion for legitimate democratic politics does not imply that there is no limit to what movements may do. Indeed, my argument, as it stands, could endorse only coercion that is reasonably oriented towards transforming those unequal social power-relations that disadvantage some groups, hindering their equal inclusion in political contention and undermining democracy. The cases of coercion discussed above are justifiable, in other words, because they were necessary to transform such social relations. This, I think, is the most important response to the present objection, because it names the objective in light of which coercive tactics can be justified: the democratic demand for a transformed society in which the major institutions and social relations distribute power at least evenly enough to enable broad inclusion on equal terms in political contention.

In the meantime, however, since this is an argument in democratic theory, there is another intrinsic limit on what movements may do – one concerning the rights that are implicated in the practice of democracy itself. Like a number of deliberative theorists, Habermas contends that democratic self-determination ('public autonomy') and certain

[84] Cf. James Bohman, 'Deliberative Democracy and Effective Social Freedom: Capabilities, Resources, and Opportunities', in Bohman and Rehg, eds, *Deliberative Democracy*, pp. 321–48; Knight and Johnson, 'What Sort of Political Equality Does Deliberative Democracy Require?'

individual rights ('private autonomy') actually presuppose each other.[85] If so, there is a set of core democratic rights that cannot coherently be violated in the name of democracy.[86] These would surely include rights to political participation, as well as rights to free speech and association. And *a fortiori*, if movements oriented towards achieving or enhancing democracy cannot violate such rights and retain the democratic label, they surely cannot commit or threaten violence against others.

Infringements of property rights, especially if those rights are construed broadly, would not violate the intrinsic democratic limits described above. A protest that trespassed on a person's property, or denied them some advantageous use of an asset – a sit-in, an occupation, an act of tree-sitting, a rent strike, or a boycott – would not necessarily infringe on rights to participation, free speech, or association. Indeed, it would be exceedingly dangerous to democratic rights to suggest that a social movement could never act in such a way as to hinder others' full and exclusive enjoyment of their property. Of course, on my account, tactics harming someone's property would have to be reasonably directed towards democratizing social and political relations. Direct physical destruction of property of the window-smashing variety would not be easy to justify according to this standard. I hasten to add that there may be additional things movements should not do, for reasons democratic theory does not provide. And there may also be situations, conversely, in which movements do not have to act democratically. We may ask: may an environmental movement justifiably destroy property in order to stave off immediate damage to a habitat? Possibly, but the justification would be based on arguments outside the scope of this article.[87]

These Coercive Tactics are Too Varied – and Not Very Coercive

Some readers may take this quite different view, precisely because, by admission, the tactics I have discussed do not violate others' core democratic rights. So do these tactics not constitute a strong, singular challenge to deliberative democracy? In response to the charge of undue heterogeneity: the tactics discussed above are coercive in precisely the sense relevant for deliberative democracy. They compel others to accept decisions or take actions despite their objections, or without regard for the fact that they do not share the appropriate rationales or aims. And frequently they are coercive, more specifically, in that they work by altering immediately the social relations in which public discourse is enmeshed, again through means other than persuasion. Thus it is possible to exercise considerable coercion in this relevant sense without violating the core democratic rights mentioned above. As the discussion below will show, coercion is significant in so far as it affects or imperils important interests and thereby necessitates a response – especially

[85] Habermas, *Facts and Norms*, pp. 104–5, 118, 122–3; Habermas, *Inclusion of the Other*, pp. 258–9. A number of deliberative theorists have made such an argument, as against traditional claims that individual rights and democracy are necessarily at odds with each other. See Benhabib, 'Toward a Deliberative Model'; Rawls, *Political Liberalism*, p. 412; Cohen, 'Procedure and Substance in Deliberative Democracy'; Dryzek, *Deliberative Democracy and Beyond*, pp. 10–12.

[86] Robert A. Dahl, *A Preface to Economic Democracy* (Berkeley and Los Angeles: University of California Press, 1985), pp. 24–9.

[87] Peter List, 'Some Philosophical Assessments of Environmental Disobedience', in R. Attfield and A. Belsey, eds, *Philosophy and the Natural Environment* (Cambridge: Cambridge University Press, 1994), pp. 183–98; N. Ben Fairweather, 'The Future of Environmental Direct Action: A Case for Tolerating Disobedience', in N. B. Fairweather, S. Elworthy, M. Stroh and P. H. G. Stephens, eds, *Environmental Futures* (New York: St Martin's Press, 1999), pp. 103–20.

accepting a decision or taking an action the coerced party finds objectionable. The US civil rights movement denied the Montgomery bus lines (as well as a host of businesses in cities like Birmingham and Albany) patronage and revenue such businesses needed to survive. This was coercive, even though those businesses had no right to that patronage.

Tactics that are coercive in the relevant sense may nevertheless be differentiated from each other, because they compel by affecting a wide variety of important interests in different ways. Very large demonstrations may threaten political stability and hence, as well, the appearance of a government's or a party's legitimacy and power – things parties and governments rely upon to sustain themselves and to obtain any of their goals. Such actions may also threaten the civil peace and normal social functions that ordinary citizens rely upon. Protests may be intended to disrupt relationships and alliances upon which targets depend, over time. Movement actions from strikes to boycotts may be aimed at disrupting production, patronage, profitability, cash flow, the ability to obtain financing and, hence, the very survival of businesses. This can work directly, as in a strike that paralyses a workplace, or indirectly, through discouraging customers, clients or tourists from providing patronage.

Given the complexity of political contention, the same set of coercive actions may relate to different coerced parties differently. The coercion may be immediate, as when a march or sit-in prevents a person from entering a building or using a public street. However, the coercion may be felt only upon a careful analysis of one's situation and the likely consequences of the tactics. The particular coercion felt may be almost a side-effect of a tactic (a third party inconvenienced by a march) or a central aim of the movement (a party forced to negotiate). The aim of the tactic may be one to which coerced parties object specifically and on principle (southern hardliners forced to negotiate with African Americans), or only for instrumental reasons (the Kennedy administration forced to preside over negotiations).

The Wrong Antagonist?

Are parts of my argument misguided, because the force of 'deliberative democracy' would be directed, for example, against segregationists, not against civil rights protestors? I do not think so. First, by attempting to show how King can be understood to have conformed to deliberative principles, theorists have made it clear that their standards of conduct are meant to apply fully to marginalized groups.[88] What, then, of the posture of 'deliberative democracy' towards segregationists and others like them? Rawls argues that public reason proceeds 'from premises we accept and think others could reasonably accept to conclusions we think they could also reasonably accept.'[89] One could interpret this as a call to rely on premises even segregationists could accept – in a spirit of sensible compromise, given their existing beliefs. If so, however, 'deliberative democracy' would be a counsel of quiescence, ceding a great deal to the power of segregationists.[90] In fairness, I do not think

[88] Rawls seems to hint that special standards might apply to those living under an unjust political order. See Rawls, *Political Liberalism*, pp. lii, 250–1. But it is hard to see how this suggestion could be squared with his theory of public reason as a whole, and, in any case, he appears to have disavowed the relevant passage. See Rawls, 'The Idea of Public Reason Revisited', pp. 152, 155–6.

[89] Rawls, 'The Idea of Public Reason Revisited', p. 155.

[90] Cohen expressly denies such an interpretation. See Joshua Cohen, 'Moral Pluralism and Political Consensus', in David Copp, Jean Hampton and John E. Roemer, eds, *The Idea of Democracy* (Cambridge: Cambridge University Press, 1993), pp. 270–91, p. 284.

this is what Rawls means by 'reasonable'. For Rawls, being 'reasonable' involves viewing others as free and equal, and willing to offer fair terms of co-operation.[91] By this standard, of course, segregationists were inherently unreasonable. Thus some proponents might make the radical claim that 'deliberative democracy' simply does not heed the ideas of such unreasonable people.[92] But this is at once a dangerous and unhelpful line of argument, one that deliberative theorists ought not to push. It is objectionable in so far as it rests on a disregard for the subjective consciousness of unreasonable opponents far more thorough and radical than that involved in coercion. And in any case, categorizing the 'unreasonable' as beyond the pale offers no practical guidance to marginalized groups facing entrenched, unreasonable opponents. In a social world in which groups with unreasonable positions actually do have power, it is of no use to marginalized groups to reassure them that, ideally, those unreasonable positions should count for nothing.

Ideal and Non-Ideal Theory

Does my article constitute an unfair 'non-ideal' critique of an 'ideal' theory? Such an objection would be misguided in a number of respects. First, and perhaps most importantly, deliberative democrats themselves have emphasized that their theories are not merely ideal. As a prominent proponent puts it: 'The deliberative model of democracy does not represent a counterfactual thought experiment.'[93] In their deliberative democratic writings, both Rawls and Habermas claim to have moved towards more realistic or more concrete conceptions of liberal democratic politics – albeit following different paths with different aims.[94] And deliberative democrats have almost all claimed to have a workable political vision, one responsive to the conditions social movements face and capable of resolving conflicts in which they are enmeshed. Critics are fully entitled to take deliberative democrats at their word. Secondly, my article is not merely 'non-ideal' (if such a thing were indeed possible). I do not simply argue that the ideals of deliberative democrats cannot be realized, but that the application of at least one of the ideals, non-coercion, would in many important situations be undesirable, and would conflict with the realization of more important political and social aims. Finally, the generic distinction between ideal and non-ideal theory is not a very helpful one. From any concrete social or political situation, a large and possibly infinite number of different ideal constructs can be abstracted. And (moving in the opposite direction) any ideal can be compared to concrete circumstances in a variety of ways and for different purposes. Let us take a relevant example, Habermas's 'ideal speech' situation – an early precursor to his deliberative theory. As presented thirty years ago in *Legitimation Crisis*, this ideal seemed to have been designed for at least one explicit use, namely, to compare existing norms legitimating capitalist society with 'the hypothetical state of a system of norms formed, *ceteris paribus*, discursively' – that is, in the absence of coercion and deception.[95] Such a comparison would have constituted a kind

[91] Rawls, *Political Liberalism*, p. xliv.

[92] Cohen, 'Moral Pluralism and Political Consensus', p. 284.

[93] Benhabib, 'Toward a Deliberative Model', p. 84.

[94] Habermas, according to Bohman, worried that his 'ideal speech' situation might be used to justify calls for radical social reconstruction, and he adopted a more concrete approach to liberal democratic politics in part to stave off such a use of his writings (Bohman, *Public Deliberation*, pp. 12, 14; Habermas, *Facts and Norms*, p. 323).

[95] Jürgen Habermas, *Legitimation Crisis* (Boston, Mass.: Beacon Press, 1975), p. 113.

of ideology critique. Given the nature of the ideal, however, one could also have used it to compare the non-coercive ideal situation with the existing world of institutions and social relations. This could have formed the basis for a kind of sustained radical social-structural critique, of the sort Habermas (and other deliberative democrats) now eschew. Another possibility would be to criticize the conduct of social agents from the standpoint of ideally non-coercive and non-deceptive practices. It is not enough to say, generically, a certain political theory is ideal or rests on an 'ideal'. The type and function of the ideal have to be specified. Then criticism (and subsequent responses) are appropriately directed substantively and in detail towards the specific type and operation of the ideal.

CONCLUSION

Throughout this article, I have characterized my argument as demonstrating that certain features of deliberative democracy – including the strict Rawlsian construal of public reason, but especially the blanket prohibition of coercion in public discourse – would undermine democratic inclusion. On this reading, there is a fundamental tension within the deliberative paradigm. But in so far as my argument establishes the existence of this tension, it also establishes something else: that the significance of coercion and non-coercion for democracy can only be assessed from the standpoint of a more synoptic perspective. That perspective could be provided by the theorization of a project for transforming society so that the major institutions and social relations distribute power evenly enough to enable broad inclusion on equal terms in political contention. Deliberative democracy has been about describing a form of reason or a way for citizens to talk uniquely appropriate to democracy:[96] about elucidating the principled rationale for the existing interplay between civil society and state;[97] about the elaboration of a democratic ideal that can take the place of participation in societies where participation is said no longer to be practical;[98] about the derivation of democratic rights from principles of discourse;[99] or about the working out of 'authenticity' (as opposed to 'scope' or 'franchise') as a legitimating ideal of democracy.[100] But it has not been about the sort of transformative project I have just named. Indeed, deliberative democrats have resisted demanding the broad democratization necessary to realize such social relations and institutions.

The argument of this article has demonstrated, in several ways, what I think can appropriately be termed the serious *incompleteness* of the deliberative paradigm – the impossibility of containing critical democratic reflection within the paradigm's limits. First, there is the conceptual tension just mentioned, which leads us logically to search for an additional critical democratic standard. A second manifestation of the incompleteness of the deliberative paradigm is sociological. The primary focus of deliberative theory is on 'deliberation itself', as Bohman has put it:[101] most especially, the kinds of arguments

[96] Gutmann and Thompson, *Democracy and Disagreement*, pp. 12–16; Rawls, 'The Idea of Public Reason Revisited'.

[97] Benhabib, 'Toward a Deliberative Model', p. 84; Habermas, *Between Facts and Norms*, pp. 323, 372; Seyla Benhabib, 'Review of "Between Facts and Norms": Contributions to a Discourse Theory of Law and Democracy', *American Political Science Review*, 91 (1997), 725–6; Habermas, *Inclusion of the Other*, pp. 250–2.

[98] Bohman, *Public Deliberation*, p. 24.

[99] Cohen, 'Procedure and Substance in Deliberative Democracy'.

[100] Dryzek, *Deliberative Democracy and Beyond*, pp. 1, 29, 86.

[101] Bohman, 'The Coming of Age of Deliberative Democracy', p. 401.

agents use, their forms of expression, whether they address or ignore other parties, and so on. But as soon as we attempt to understand these issues as social movements face them, we find that the context has a tendency to expand in scope sociologically. From the immediate interaction of interlocutors, we are led to think about the broader social relations in which they are enmeshed: the enduring relations that position interlocutors unequally and give them differing capacities to act, the shared and competing frames that structure their discourse and which are partly constituted by lasting inequalities, and the structural characteristics of the different social arenas of contention. Relatedly, we are led from the consideration of coercion, viewed as an instantiation of power, to power itself, viewed as a capacity to act given an actor in virtue of all these enduring social relations.

Thus, there are at least two impulses towards transcending the focus on democratic discourse: one leading towards another, more synoptic, perspective for assessing democratic legitimacy; the other towards a more adequate sociological context in which to view contentious public discourse. Jointly, however, both impulses point to the democratic significance of enduring social relations and power. Once we have admitted that social movements cannot be barred from using coercion, then, we find we need a form of social analysis and a principle to show us when and within what limits coercion is acceptable. Most importantly, my argument holds that social movement coercion can be endorsed when it is reasonably oriented towards democratizing those major institutions and social relations that oppress and disadvantage some groups, hindering their inclusion in political contention on equal terms.

Deliberative theorists might think that relatively egalitarian social power relations are valuable only in so far as they promote non-coercive deliberation. But from the standpoint of a proper sociological understanding of power and coercion, it is not at all clear why this would be so. Why, that is, should we attach principled significance only to the coercive exercise of power, and not the distribution of power itself, or to the structure of institutions that determine that distribution? Imagine a situation in which we observe no coercive acts – a situation, however, in which we know that significant inequalities still actually structure social power relations and hamper inclusion in political contention. It is difficult to imagine that democrats of a critical bent could be contented with such a situation.

Deliberative democrats have resisted moving in the direction that this article points: towards a demand for the sort of broad, transformative democratization of existing social, economic and political institutions that would equalize power relations. Bohman, for example, has described the 'coming of age' of deliberative theory precisely as a reconciliation of discursive theories with existing liberal political institutions.[102] Habermas's non-coercive ideal speech situation might once have been seen as providing the basis for a thorough critique of existing liberal democracy – and certainly it has been employed this way.[103] But Habermas, by his own account and Bohman's, was never comfortable with this use of the concept, and more recently suggests somewhat elusively that it should be applied to real institutions only in order to demonstrate that the contemporary social world is characterized by 'unavoidable' social complexity.[104] His recent work is justly regarded more as a justification for current liberal democratic politics – a search for ' "existing reason" already incorporated in political practices' – than any

[102] Bohman, 'The Coming of Age of Deliberative Democracy'.

[103] See, for example, David Held, *Democracy and the Global Order: From the Modern State to Cosmopolitan Governance* (Stanford, Calif. Stanford University Press, 1995), pp. 160–6.

[104] Bohman, *Public Deliberation*, pp. 12, 14; Habermas, *Between Facts and Norms*, p. 323.

kind of critique.[105] Rawls at one time seemed to believe that justice, at least, demanded either reforms along the lines of 'liberal socialism' or 'property-owning democracy', in which no concentrations of property would be great enough to threaten political equality.[106] But on the path that led him to *Political Liberalism* and to deliberative democracy, Rawls seemed to put off such egalitarian demands. In sum, as Emily Hauptmann amply demonstrates, proponents of deliberation have retreated from radical democratic criticism.[107] Deliberative theorists have ignored, not refuted, the related traditions in democratic theory that have been deeply concerned with the way in which major social, economic and political institutions distribute power – traditions interested in both the structure of major social institutions and in socially-constituted capacities to act.[108] Deliberative theory's retreat from this sort of theorizing is deeply implicated in its misunderstanding of social movements and the coercive tactics they have so frequently used to regenerate democracy.

[105] Habermas, *Facts and Norms*, p. 287. And see, for example, Benhabib, 'Review of "Between Facts and Norms" '

[106] John Rawls, *A Theory of Justice* (Cambridge: Harvard University Press, 1999), pp. 242–8.

[107] Emily Hauptmann, 'Can Less Be More? Leftist Deliberative Democrats' Critique of Participatory Democracy', *Polity*, 33 (2001), 397–421.

[108] G. D. H. Cole, *Guild Socialism: A Plan for Economic Democracy* (New York: Frederick A. Stokes, 1920); John Dewey, *The Public and Its Problems* (New York: H. Holt, 1927); John Dewey, *Liberalism and Social Action* (New York: G. P. Putnam's Sons, 1935); John Stuart Mill, *Principles of Political Economy, with Some of Their Applications to Social Philosophy* (Toronto: University of Toronto Press, 1965); Carole Pateman, *Participation and Democratic Theory* (Cambridge: Cambridge University Press, 1970); Otto Bauer, *Der Weg zum Sozialismus*, in *Otto Bauer: Werkausgabe* (Vienna: Europaverlag, 1976); John Stuart Mill, 'Considerations on Representative Government', in J. M. Robson, ed., *Essays on Politics and Society* (Toronto: University of Toronto Press, 1977); Carole Pateman, *The Problem of Political Obligation: A Critical Analysis of Liberal Theory* (Chichester, Hants: John Wiley & Sons, 1979); Dahl, *Economic Democracy*; Held, *Democracy and the Global Order*; Roberto Mangabeira Unger, *Democracy Realized: The Progressive Alternative* (London: Verso, 1998).